

“The Philosophy of Law” Quiz

- 1. The definition of law given by Thomas Aquinas includes which of the following?**
 - a. Law is an ordinance of reason
 - b. Law is for the common good
 - c. Law is made by him who has care of the community
 - d. All the above**
 - e. A and B only

- 2. Which of these is *not* a foundational question examined by the philosophy of law?**
 - a. How can laws be justified?
 - b. Are contracts moral promises?
 - c. Must the law depend on morality?
 - d. How should judges interpret the constitution?
 - e. Should the church play a role in making laws?**

- 3. All laws must depend on morality.**
 - a. True
 - b. False**

- 4. Legal positivism is the view that the law is no more and no less than what is posited by those in authority.**
 - a. True**
 - b. False

- 5. Natural law theory maintains that human law gets its justification from natural law and not from those in authority.**
 - a. True**
 - b. False